APOSTOLIC FAITH MISSION IN ZIMBABWE
versus
APOSTOLIC FAITH MISSION OF ZIMBABWE
and
WILLARD KURIDA

IN THE HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 1st July 2025 and 9 January 2026

OPPOSED COURT APPLICATION

E.E Homera for the Applicant
No appearance for the 1st respondent
Gomero for the 2nd respondent

TAKUVA J: This is an application for an interdict against the first and second respondents. The Applicant's prayer is that the first and second respondents and their followers must be interdicted permanently from using, accessing or conducting services and gatherings at the Applicant's premises.

BACKGROUND FACTS

1. The Applicant is a Pentecostal church and a common law *universitas* which was established in Zimbabwe in about 1916. Applicant operates on the basis of a written constitution and regulations which ascribe its foundational values, confession of faith, mission and governance structures. The Applicant is reposed of a legal *persona* to own property rights, sue and be sued in its own name.
2. The second Respondent was employed by the Applicant as a pastor until 2018 when he was dismissed.
3. It is common cause that during the period 2017-2019, the Applicant has been involved in a leadership wrangle which was resolved by the Supreme Court and has seen several judgments thereafter granted by this court against the breakaway pastors seeking to take over the Applicant's properties without any lawful basis.

4. The leadership wrangle involved one Cossam Chiangwa and Amon Dubie Madawo. The Supreme Court in SC 67/21 held that Amon Dubie Madawo was the rightful elected leader of the Applicant.
5. After this judgment the disgruntled members led by Cossam Chiangwa, left the Applicant and formed their own church styled in the name of the first Respondent. The second Respondent is among the disgruntled pastors that joined or formed the first Respondent.
6. The second Respondent has continued to unlawfully conduct his pastoral duties on the premises of the Applicant, in the name of the first Respondent a different and rival institution knowing very well that he has no right to be on the Applicant's premises.

The issue to be determined by this court is whether or not the Applicant has proved all the requirements of an interdict? However, as is now fashionable, second Respondent's counsel took a point in *limine* which did not appear in his papers. The point is that there is no application before the court because the affidavit was deposed to by a deponent who is not properly authorized. The criticism is that the resolution is a general one which does not speak to the Respondents before the court. Also, it does not mention the cause of action. It is a blanket resolution in that it gives authority to Madawo.

Finally, second Respondent submitted that the application is improperly before the court and must be struck off the roll with costs.

On the other hand, Applicant submitted that a valid resolution must emanate from the institution, be signed and identifying the deponent to be clothed with the authority. The respondent does not state that the resolution does not come from the Applicant. The complaint is that its contents are general. Applicant relied on Valentine & Anor v Blue City S/C 42/23.

Analysis

In my view the resolution *in casu* shows the cause of action in paragraphs 3 and 4 as the unlawful occupation by identified personnel. The resolution is not general in that it speaks to illegal occupants of Applicant 's property. One need not

identify by name the parties involved. As regards the cases cited by the second Respondent, I take the view that they are distinguishable from the facts of this matter.

Disposition

The point *in limine* lacks merit and it ought to be dismissed with costs.

1. In the result, it is ordered that the point *in limine* raised by the second Respondent be and is hereby dismissed.
2. The second Respondent be and is hereby ordered to pay costs of suit.

Zvimba Law Chambers, Applicant's Legal Practitioners.
Moyo, Chikono and Gomero, Second Respondent's Legal Practitioners.